

25STCV36598 25STCV36598

County: los-angeles

Division: Civil Law and Motion

Department: 512

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Case Number: 25STCV36598 Hearing Date: July 14, 2026 Dept: 512

HEARING DATE: Tues., July 14, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Peters v. Continuity Care Home Nurses, COMPL.

FILED: 12-16-25

Inc., et al.

CASE NUMBER: 25STCV36598

NOTICE: OK

PROCEEDINGS: MOTION

FOR LEAVE TO FILE A FIRST AMENDED COMPLAINT

MOVING PARTY: Plaintiff

Dmoney Peters, by and through his Guardian Ad Litem, Shermick Peters

RESP. PARTY: Defendants Continuity Care Home Nurses,

Inc. and Continuity Care Staffing Services, Inc.

MOTION FOR LEAVE TO AMEND;

(CCP § 473(a))

TENTATIVE RULING:

Plaintiff Dmoney Peters,

by and through his Guardian Ad Litem, Shermick Peters's Motion for Leave to

File a First Amended Complaint is GRANTED.

Plaintiff is to file the
First Amended Complaint within 10 days from this order.

Moving party is ordered to
give notice.

SERVICE:

☒ Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ Correct Address (CCP §§ 1013, 1013a) OK

☒ 16/21 Court
Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed
on June 30, 2026 ☐
Late ☐ None

REPLY: Filed
on July 7, 2026 ☐
Late ☐ None

ANALYSIS:

I.

Background

On December 16, 2025, Plaintiff Dmoney
Peters, by and through his Guardian Ad Litem, Shermick Peters ("Plaintiff")
filed the instant action against Defendants Continuity Care Home Nurses, Inc.
("Continuity Care Home"); Continuity Care Staffing Services, Inc. ("Continuity
Care Staffing"); Francisco J. Gallegos Loaiza ("Defendants"); and Does 1-50,
alleging causes of action for Negligence and Negligent Hiring, Supervision, or
Retention of Employee. (Compl., p. 1.)

On February 27, 2026, Continuity Care
Home and Continuity Care Staffing filed an Answer and Motion to Strike.

On April 24, 2026, the Court granted Continuity Care Home and Continuity Care Staffing's Motion to Strike and struck the claims for punitive damages in the Complaint for Plaintiff's failure to comply with Code of Civil Procedure section 425.13. (4/24/26 Order.) The Court held that "Plaintiff may move for leave to assert punitive damages." (4/24/26 Order.)

On June 16, 2026, Plaintiff filed the instant Motion for Leave to File a First Amended Complaint ("FAC") (the "Motion").

On June 30, 2026, Continuity Care Home and Continuity Care Staffing filed an Opposition.

On June 7, 2026, Plaintiff filed a Reply.

II.
Legal
Standard

A party may amend its pleading once without leave of court at any time before the answer, demurrer, or motion to strike is filed. (Code Civ. Proc., § 472.)

Leave to amend is permitted under Code of Civil Procedure section 473, subdivision (a), which states: "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading or proceeding by adding or striking out the name of any party, or by correcting a mistake in the name of a party, or a mistake in any other respect; and may, upon like terms, enlarge the time for answer or demurrer. The court may likewise, in its discretion, after notice to the adverse party, allow, upon any terms as may be just, an amendment to any pleading or proceeding in other particulars; and may upon like terms allow an answer to be made after the time limited by this code."

"Although courts are bound to apply a policy of great liberality in permitting amendments to the complaint

at any stage of the proceedings, up to and including trial [citations], this policy should be applied only 'where no prejudice is shown to the adverse party . . . [citation]. A different result is indicated 'where inexcusable delay and probable prejudice to the opposing party' is shown. [Citation]." (Magpali v. Farmers Group (1996) 48 Cal.App.4th 471, 487.)

A

motion for leave to amend a pleading must also comply with the procedural requirements of California Rules of Court, Rule 3.1324, which requires that a motion to amend must: "[i]nclude a copy of the proposed... amended pleading... [and] state what allegations in the previous pleading are proposed to be [deleted and/or added], if any, and where, by page, paragraph, and line number, the [deleted and/or additional] allegations are located." (Cal. Rules of Court, rule 3.1324(a).)

A motion for leave to

amend a pleading must also include "[a] separate declaration must accompany the motion and must specify: (1) The effect of the amendment; (2) Why the amendment is necessary and proper; (3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier." (Cal. Rules of Court, rule 3.1324(b).)

III.

Discussion

Plaintiff

seeks leave of court to file a FAC that would "add claims for Dependent Adult Abuse pursuant to the Elder Abuse and Dependent Adult Civil Protection Act, Welfare and Institutions Code section 15600, et seq., Assault and Battery, Sexual Battery, and Fraud, as well as allegations and a prayer for punitive damages." (Motion, pp. 1-2, Jahezian Decl., ¶¶ 2, 4, 5, Exhs. A-B.) Plaintiff files a proposed FAC – both a clean copy and a copy with redlines – in conjunction with the Motion. (Cal. Rules of Court, rule 3.1324(a).)

In Opposition, Continuity

Care Home and Continuity Care Staffing appear to concede that granting Plaintiff's requested amendments is within the Court's discretion except for the proposed claim for punitive damages. The Opposition states that "despite having the edification of the prior ruling, Plaintiff's Motion does not even

mention section 425.13, let alone comply with its requirements,” and thus the request for punitive damages violates the Court's prior order. (Opp., p. 2.)

In Reply, Plaintiff states

it is no longer necessary for Plaintiff to comply with Code of Civil Procedure section 425.13 as the proposed FAC raises other causes of action that allow for punitive damages besides a medical negligence by health care provider claim. (Reply, pp. 1-2, 5.)

The Court finds the Motion complies with California Rules of Court, rule 3.1324(a). The Motion includes a copy of the proposed FAC (Motion, Jahezian Decl., Exhs. A-B) and sets forth the allegations to be added and/or deleted along with the corresponding paragraph numbers. (Motion, p. 2, 5, Jahezian Decl., ¶¶ 2, 4, 5, Exhs. A-B.)

Plaintiff's Motion also includes a separate declaration from Plaintiff's counsel that substantially satisfies California Rules of Court, rule 3.1324(b). Indeed, the declaration states that Plaintiff seeks to file a FAC to add claims for Dependent Adult Abuse pursuant to the Elder Abuse and Dependent Adult Civil Protection Act, Welfare and Institutions Code section 15600, et seq., Assault and Battery, Sexual Battery, and Fraud, as well as allegations and a prayer for punitive damages; the facts giving rise to the proposed amendment were discovered in May 2026 when Defendants responded to discovery and produced documents; the request for amendment was not made earlier “because the facts and information supporting the proposed amended allegations, including facts concerning the nature and timing of the alleged sexual abuse, Plaintiff's dependent adult status and full dependency for care, Defendants' custody, care, supervision, and control of Plaintiff, and Defendants' relevant policies, procedures, training, supervision, hiring, screening, and reporting obligations, were obtained and/or clarified through Plaintiff's continuing investigation and Defendants' May 2026 discovery responses and document production”; and Defendants will not suffer prejudice as a result of the proposed amendments. (Motion, Jahezian Decl., ¶¶ 2-8.)

Thus, the Court finds Plaintiff has substantially met the requirements set forth in California Rules of Court, rule 3.1324(b).

As to Continuity

Care Home and Continuity Care Staffing's arguments regarding the punitive damages allegations in the proposed FAC, the Court notes that there are new

causes of action for Dependent Adult Abuse, Assault and Battery, Sexual Battery, and Fraud, above and beyond the Negligence cause of action enumerated in the Code of Civil Procedure section 425.13, thus the Court's prior order does not bar the instant FAC. In particular the Code of Civil Procedure section 425.13 does not apply to an Elder Abuse Act or fraud claims. (See *Covenant Care Inc. v. Sup. Ct.* (2004) 32 Cal.App. 4th 771, 782-790; *Country Villa Claremont Healthcare Ctr. Inc. v. Sup.Ct.* (2004) 120 Cal.App. 4th 426, 431.)

To the extent Continuity Care Home and Continuity Care Staffing argue the allegations in the FAC are insufficient to support a request for punitive damages, Continuity Care Home and Continuity Care Staffing may bring a responsive pleading to formally challenge these allegations should they choose.

Accordingly, the Motion is GRANTED.

IV.

Conclusion

& Order

For the foregoing reasons,

Plaintiff Dmoney Peters, by and through his Guardian Ad Litem, Shermick Peters's Motion for Leave to File a First Amended Complaint is GRANTED.

Plaintiff is to file the

First Amended Complaint within 10 days from this order.

Moving party is ordered to
give notice.